



SPONSOR: Rep. Morrison & Sen. Townsend
Reps. K. Johnson, Lambert, Gorman; Sens. Seigfried,
Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 253

AN ACT TO AMEND TITLE 12 OF THE DELAWARE CODE RELATING TO PERSONS QUALIFIED TO RECEIVE LETTERS TESTAMENTARY OR OF ADMINISTRATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Subchapter I, Chapter 15, Title 12 of the Delaware Code by making deletions as shown by
2 strike through and insertions as shown by underline as follows:

3 § 1508. Persons not qualified to receive letters testamentary or of administration.

4 Letters testamentary, or of administration, ~~shall~~ may not be granted to a ~~minor~~, minor or to a person who is
5 mentally ~~incapacitated or to a person convicted of a crime disqualifying the person from taking an oath.~~
6 incapacitated. Letters testamentary, or of administration, may not be granted to a person convicted of a crime disqualifying
7 the person from taking an oath, unless an exception is granted by the Register of Wills. An exception may be granted by
8 the Register of Wills if good cause is shown. In granting the exception, the Register may require the petitioner to retain an
9 attorney admitted to practice before the Delaware Supreme Court for the entirety of the administration of the estate.

SYNOPSIS

This Act provides that a felon may receive letters testamentary, or of administration, when the Register of Wills permits it, in the Register's discretion, upon good cause shown.